Poland: Increased polarization will constrain Tusk’s agenda

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【メール原文】

Poland's constitutional crisis is increasingly becoming a test of Tusk’s ability to govern. On 30 October, Constitutional Tribunal judge Anna Korwin-P||||||||||||||||

Poland
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Nawrocki's intervention will deepen polarization and constrain Tusk's agenda

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Prime Minister Donald Tusk’s bid to reconstitute the Constitutional Tribunal is part of his efforts to fulfill a key electoral promise to restore the rule of law; his relationship with President Karol Nawrocki will turn even more confrontational, likely further slowing Tusk’s legislative agenda.
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Nawrocki's direct intervention at the tribunal marks a turning point; while some believe he can now unify the right and assemble a governing majority, the right will likely remain fragmented.
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The constitutional crisis will further polarize the voter base, with neither side likely to gain significantly beyond its existing coalition ahead of 2027.

Poland's constitutional crisis is increasingly becoming a test of Tusk’s ability to govern. On 30 October, Constitutional Tribunal judge Anna Korwin-Piotrowska suspended tribunal President Bogdan Swieczkowski and Vice President Bartłomiej Sochanski, both appointed by the Law and Justice (PiS) party when it led the government. The move sparked protests and prompted Nawrocki to cut short a foreign trip and intervene personally at the tribunal—a step that marks a significant escalation in his confrontation with Tusk. Tusk accused PiS and Nawrocki of undermining the rule of law. The opposition branded the move a coup, while the existing tribunal leadership rejected the suspensions as unlawful.

Restoring the rule of law, and as part of that, reconstituting the tribunal, was one of Tusk’s main electoral promises. The tribunal reviews whether legislation complies with Poland's constitution and has been at the center of a political dispute since PiS introduced controversial judicial reforms in 2015. Since returning to office in December 2023, Tusk's government has been unable to move parts of its legislative agenda, in part because the tribunal remained in opposition hands. In March 2026, parliament elected six new judges. Nawrocki swore in only two, refusing to recognize the remaining four, who subsequently took their oaths in parliament. With a new judge now seated, Tusk's coalition holds the majority of the tribunal votes, though still likely not enough to have a quorum. Consolidating that majority is the immediate objective. The tribunal's General Assembly on 3 November will be the next test.

Tusk is trying to turn years of institutional deadlock into political momentum before 2027. Tusk has secured a tactical advantage, but whether he can turn it into a longer-term political gain remains uncertain. His efforts to break the institutional deadlock have drawn Nawrocki into a direct confrontation. The president's decision to physically enter the tribunal and confront the government's judges has allowed Tusk to portray him as obstructing judicial independence. Restoring the rule of law remains a key campaign promise, and Tusk's firm stance could consolidate his voter base. However, the opposition will continue portraying his moves as an unlawful takeover. A key signpost ahead of 2027 will be whether Tusk can translate this confrontation into sustained electoral support beyond his core voters.

Nawrocki will try to bring together Poland's increasingly fragmented right-wing opposition but likely fall short. The crisis has temporarily united leaders from PiS, Confederation, Development Plus (R+), and Confederation of the Polish Crown, which appeared together outside the tribunal. However, their differences remain substantial. PiS wants to preserve the existing tribunal, Confederation is calling for early elections, and R+ supports replacing the government. Nawrocki's consultations offer him a chance to position himself as a unifying figure ahead of 2027. However, competing ambitions and deeper disagreements over economic and foreign policy will complicate efforts to achieve lasting cooperation. The key signpost will be whether these parties can agree on a common political strategy rather than merely maintaining their shared opposition to Tusk.

Even with tribunal control, the government’s cohesion will be tested. Nawrocki retains presidential veto power over legislation, and the tribunal fight does not change that. This will continue to challenge the government’s legislative agenda. The Polish People's Party and Poland 2050, junior partners in the governing coalition led by Tusk’s Civic Coalition (KO), favor a constitutional reset that would replace all tribunal judges; KO opposes such a move, as it would remove its newly seated judges.

All coalition parties currently intend to run separately in 2027, but sustained internal disagreement could strain the coalition and pressure junior partners—both of whom already poll below the 5% parliamentary threshold—to reconsider their electoral strategies. The key signposts will be any shift in coalition partners' positions on a constitutional reset, signs of growing internal divisions, and whether Tusk can pass priority legislation before the 2027 campaign begins in earnest. These will determine whether the tribunal fight translates into genuine governing gains or remains primarily a political confrontation.

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